# MASTER SERVICES AGREEMENT

*Fictional sample for Claude training. Not a real agreement and not legal advice.*

This Master Services Agreement ("Agreement") is made on 15 September 2026 (the "Effective Date") between **Orbis Consulting Pvt Ltd**, a company incorporated in India with its registered office at 4th Floor, Cyber Park, Gurugram, Haryana ("Supplier"), and **Meridian Health Insurance Ltd**, a company incorporated in India with its registered office at Bandra Kurla Complex, Mumbai ("Client").

## 1. Definitions

"Services" means the learning design, training delivery and managed learning services described in each Statement of Work ("SOW"). "Deliverables" means all materials, reports and content produced by Supplier under a SOW. "Confidential Information" means any non-public information disclosed by one party to the other, whether oral, written or electronic, that is marked confidential or would reasonably be understood to be confidential. "Personal Data" has the meaning given in the Digital Personal Data Protection Act, 2023.

## 2. Term

This Agreement starts on the Effective Date and continues for an initial term of thirty-six (36) months. It renews automatically for successive twelve (12) month periods unless either party gives written notice of non-renewal at least ninety (90) days before the end of the then-current term.

## 3. Statements of Work

Each SOW will describe the scope, deliverables, timeline, acceptance criteria and fees for a specific engagement. If there is a conflict between this Agreement and a SOW, this Agreement prevails unless the SOW expressly states that a named clause of this Agreement is varied.

## 4. Fees and Invoicing

Client will pay the fees set out in each SOW. Unless the SOW states otherwise, Supplier will invoice monthly in arrears. Fees are exclusive of GST, which Client will pay at the applicable rate. Supplier may increase its rates once per contract year, by no more than the lower of five per cent (5%) or the change in the Consumer Price Index over the previous twelve months, on sixty (60) days' written notice.

## 5. Payment Terms

Client will pay each undisputed invoice within forty-five (45) days of receipt. Amounts not paid by the due date bear interest at one per cent (1%) per month from the due date until payment. If Client disputes an invoice in good faith it must notify Supplier in writing within fifteen (15) days of receipt, giving reasons, and must pay the undisputed portion on time. If any undisputed amount remains unpaid for more than sixty (60) days after the due date, Supplier may suspend the Services on ten (10) days' written notice.

## 6. Service Levels

Supplier will meet the service levels set out in Schedule A. If Supplier fails to meet the Learner Satisfaction service level (an average score of at least 4.2 out of 5) in any calendar quarter, Client is entitled to a service credit of five per cent (5%) of the fees for that quarter. Total service credits in any contract year will not exceed fifteen per cent (15%) of the annual fees. Service credits are Client's sole financial remedy for service-level failures.

## 7. Client Responsibilities

Client will provide timely access to subject-matter experts, learner nominations and its learning management system, and will review draft Deliverables within ten (10) business days of receipt. Supplier is not responsible for delays caused by Client's failure to meet these responsibilities.

## 8. Intellectual Property

Supplier retains ownership of its pre-existing materials, methods and tools ("Supplier IP"). Upon full payment, Client will own all Deliverables created specifically for Client, excluding Supplier IP. Supplier grants Client a non-exclusive, perpetual, royalty-free licence to use any Supplier IP embedded in the Deliverables for Client's internal business purposes only.

## 9. Confidentiality

Each party will keep the other's Confidential Information secret, use it only to perform or receive the Services, and disclose it only to employees and advisers who need to know it and are bound by equivalent obligations. These obligations survive for five (5) years after termination, except for trade secrets, which are protected for as long as they remain trade secrets.

## 10. Data Protection

Where Supplier processes Personal Data on behalf of Client, Supplier will act only on Client's documented instructions, implement reasonable security safeguards, and notify Client without undue delay and in any event within seventy-two (72) hours of becoming aware of a personal data breach. Supplier will not transfer Personal Data outside India without Client's prior written consent. Supplier will not enter Client Personal Data or Confidential Information into any third-party generative AI tool unless that tool has been approved in writing by Client.

## 11. Warranties

Supplier warrants that the Services will be performed with reasonable skill and care by appropriately qualified personnel, and that the Deliverables will not, to Supplier's knowledge, infringe any third party's intellectual property rights. Except as stated in this clause, all other warranties are excluded to the extent permitted by law.

## 12. Indemnities

Supplier will indemnify Client against losses arising from any third-party claim that the Deliverables infringe that third party's intellectual property rights. Client will indemnify Supplier against losses arising from any third-party claim relating to materials supplied by Client. The indemnified party must notify the other promptly, allow it to control the defence, and give reasonable assistance.

## 13. Limitation of Liability

Neither party is liable for any indirect or consequential loss, or for loss of profit, revenue or goodwill. Each party's total aggregate liability under this Agreement in any contract year is limited to one hundred per cent (100%) of the fees paid or payable in the twelve (12) months before the event giving rise to the claim. This cap does not apply to (a) breach of Clause 9 (Confidentiality) or Clause 10 (Data Protection), for which the cap is two hundred per cent (200%) of those fees; (b) the indemnities in Clause 12; or (c) liability that cannot be limited by law.

## 14. Termination

Either party may terminate this Agreement for convenience on ninety (90) days' written notice, provided that Client may not terminate for convenience during the first twelve (12) months of the initial term. Either party may terminate immediately on written notice if the other commits a material breach that is not remedied within thirty (30) days of notice, or becomes insolvent. On termination Client will pay for all Services performed up to the termination date.

## 15. Non-Solicitation

During the term and for twelve (12) months afterwards, neither party will solicit for employment any employee of the other who was directly involved in the Services, without the other's written consent. General job advertisements are not solicitation.

## 16. Force Majeure

Neither party is liable for delay or failure caused by events beyond its reasonable control. If such an event continues for more than sixty (60) days, either party may terminate the affected SOW on written notice.

## 17. Governing Law and Disputes

This Agreement is governed by the laws of India. The parties will first try to resolve any dispute through good-faith discussion between senior executives for thirty (30) days. Any unresolved dispute will be referred to arbitration by a sole arbitrator under the Arbitration and Conciliation Act, 1996, seated in New Delhi, in English.

## 18. General

This Agreement and its SOWs are the entire agreement between the parties. Any amendment must be in writing and signed by both parties. Neither party may assign this Agreement without the other's consent, except to an affiliate in a corporate reorganisation. Notices must be in writing and sent to the addresses set out above.

## Schedule A – Service Levels

| Service level | Target | Measured |
|---|---|---|
| Learner Satisfaction (CSAT) | ≥ 4.2 / 5 average | Quarterly |
| Session start on time | ≥ 98% of sessions | Monthly |
| Content defect fix | Within 5 business days | Per incident |
| Trainer replacement | Within 10 business days | Per request |

Signed for Orbis Consulting Pvt Ltd: _____ Name: A. Verma, Director Date: 15 Sep 2026

Signed for Meridian Health Insurance Ltd: _____ Name: R. Iyer, Chief People Officer Date: 15 Sep 2026